MANIPAL INSTITUTE OF TECHNOLOGY
MANIPAL
(A constituent unit of MAHE, Manipal)

DEPARTMENT OF CIVIL ENGINEERING			
END SEMESTER EXAMINATION		**DECEMBER, 2024**	
Level	**B.Tech**	**Curriculum**	**2018**
Program Name	**Civil Engineering**	**Course Type**	**PE**
Course Name	**Contract Management**	**Course Code**	**CIE 4077**
Semester	**VII**	**Max Marks**	**50**
Date	**25.11.2024**	**Duration**	**03 hrs**

Instructions:

- **Answer ALL the questions.**
- **Data not provided may be suitably assumed**

Q. No.	Question	Marks	NBA		BL
			CO	PO	
1A	Discuss the following with respect to the Lump sum contract: i) factors that encourage the parties to choose, ii) limitations, and iii) scope to overcome the limitation with respect to the associated risk.	**3**	1	6,8,10, 11	**2**
1B	Prepare a template of Notice Inviting Tender (NIT) for the construction of a national highway using rigid pavement prescribing all relevant details.	**4**	2	1,2,3,4,5,8, 9,10,11	**3**
1C	List various securities and deductions to be made by the contractor during the tendering and billing transactions. Compare the letter of intent and letter of award considering the content and scope of work.	**3**	2	1,2,3,4,5,8, 9,10,11	**2**
2A	Explain three circumstances, each of which constitutes delays by i) contractor and ii) principal. Discuss the consequence/remedy for such delays attributed to the principal.	**4**	3	1,4,6,8,9, 10,11,12	**3**
2B	Explain the factors that govern price adjustment by cost escalation in construction contracts.	**3**	3	1,4,6,8,9, 10,11,12	**2**
2C	Explain, citing relevant sections under the Indian Contract Act 1874 that enable the party to receive the compensation under “extra-contractual payments” or under natural justice. Illustrate specific circumstances under which these claims are treated as valid.	**3**	3	1,4,6,8,9, 10,11,12	**3**
3A	For the following circumstances, interpret the type of breach and identify the party that is responsible for it. Suggest the consequences in each case.	**4**	3	1,4,6,8,9, 10,11,12	**3**

	a) The successful tenderer refuses to perform the works under the scope of the contract just before its commencement b) Radical changes suggested by the owner for multiple items of work during the execution of the contract, which has led to project delays c) Defective/substandard work executed by the contractor d) Pandamic such as Covid 19				
3B	Discuss the clauses that enable the contractor to be imposed with a penalty for time delays by the principal. Explain the consequences if the penalty exceeds the amount specified in the contract.	**3**	3	1,4,6,8,9, 10,11,12	**2**
3C	Compare the roles of mediation and conciliation to resolve a dispute in terms of i) involvement and attributes, ii) procedure and conduct, iii) decision-making, and status of the award.	**3**	4	1,4,6,8,9, 10,11,12	**4**
4A	Explain why litigation is considered the last resort for resolving construction contract disputes with a suitable illustration.	**3**	4	1,4,6,8,9, 10,11,12	**3**
4B	Explain the DRB proceedings referring to the 'position paper' and 'rebuttal paper.'	**3**	4	1,4,6,8,9, 10,11,12	**3**
4C	Discuss the workings of the arbitration process, considering i) the selection of arbitrator/s, ii) the proceedings, and iii) the status of the award. Can the status of the arbitrator's award be set aside? Explain.	**4**	4	1,4,6,8,9, 10,11,12	**2**
5A	Compare the 'bi-partite' method with the rest of the alternate dispute resolution (ADR) methods highlighting their key features and limitations.	**4**	4	1,4,6,8,9, 10,11,12	**2**
5B	Explain the clauses in the International contracts for giving price preference to the local bidders and bid evaluation.	**3**	5	1,5,6,8,9, 10,11,12	**2**
5C	Compare local and international competitive biddings with respect to the arbitration proceedings and enforcing the awards.	**3**	5	1,5,6,8,9, 10,11,12	**3**

MARK DISTRIBUTION (CO-wise & BTL-wise)

CO / CLO	Total Marks
1	**3**
2	**7**
3	**17**
4	**17**
5	**6**

BL	Total Marks
2	**23**
3	**24**
4	**3**
5	